[redacted]

ACH ORIGINATION AGREEMENT

THIS ACH ORIGINATION AGREEMENT (this "**Agreement**") is made this ____ day of July, 2018 by and between [redacted] (the "Company") and [redacted] (the "Financial Institution").

The Company has requested that Financial Institution permit it to initiate electronic credit entries only to accounts maintained at Financial Institution and at other financial institutions by means of the Automated Clearing House ("ACH") network. Financial Institution has agreed to do so based on the terms of this Agreement and the rules of the National Automated Clearing House Association ("NACHA"). Financial Institution has agreed to act as an Originating Depository Bank ("ODFI") with respect to such Entries pursuant to the terms of this Agreement.

Now, therefore, the Company and the Financial Institution agree as follows:

1. Definitions. Unless defined in this Agreement, capitalized terms shall have the meanings provided in the Rules.

A. "Rules" means the rules of NACHA and any corresponding appendices to the rules, as amended from time to time.
B. "Effective Entry Date" means the date included in any Entry as the date upon or after which such Entry is to be effective.
C. "Entry" has the meaning given in the Rules, except that it shall also include an "On-Us Entry".
D. "On-Us Entry" means a debit or credit Entry to an account maintained at the Financial Institution.

2. Applicable Agreements. This Agreement governs the Company's use of ACH Origination. The Company's access to and use of the Financial Institution's online services shall be governed by the applicable electronic access agreement(s), as amended from time to time, between the Company and the Financial Institution. In the event of conflict between this Agreement and any other Agreement with the Financial Institution, this Agreement shall prevail, unless otherwise provided herein.

3. Credit Approval and Exposure Limits. In utilizing the ACH network in performance of this Agreement, Financial Institution must make certain warranties to NACHA on behalf of Company. Specifically, Financial Institution is charged with assuring the financial soundness of Company to make the intended Entries. Financial Institution may request financial information from Company and Financial Institution shall also be authorized to obtain a credit report(s) on Company as may be necessary from time to time. Financial Institution may also assign Company one or more limits representing the maximum dollar amount and frequency of Entries that may be initiated by Company each day (collectively "Exposure Limits"). Company acknowledges that the Exposure Limits are solely for the protection of Financial Institution and its assets. The Company shall comply with the Exposure Limits as set forth in **Attachment 4**. Financial

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Institution may, in its discretion, limit aggregate exposure over a number of days to an amount specified by Financial Institution. Any File or Entry that exceeds the approved Exposure Limits is subject to suspension and return to Company. Company agrees to notify Financial Institution prior to submitting a File or Entry that exceeds the approved Exposure Limits. Prior notification by the Company does not limit the Financial Institution's ability to suspend, review, reject and/or return Files or Entries. Financial Institution reserves the right to reduce the Company's Exposure Limits without advance notice. Financial Institution may increase or decrease the Exposure Limits based on necessity, account performance, origination history, credit worthiness, financial performance, or any other factor the Financial Institution uses to assess Originator risk. The Exposure Limits will be evaluated by the Financial Institution no less than annually. Company agrees to provide reasonable requested documents to the Financial Institution to facilitate this process.

4. Compliance with the Rules and Applicable Law. The Company's rights and obligations with respect to any Entry are governed by the Rules, this Agreement and applicable law. The Company acknowledges receipt of a copy of, or availability of, the Rules. The Rules may also be purchased by contacting a Regional Payments Association (RPA). The Company agrees to comply with and be bound by the Rules as updated from time to time by NACHA. The Company will have liability for violations of the Rules that are, as determined by the Financial Institution, due to an action by the Company. The Company will be responsible for reimbursing the Financial Institution for cost and fines assessed to the Financial institution due to Company's violation of the Rules. The Company represents and warrants that it will further comply with applicable state and federal laws, regulations and regulatory requirements and it will not transmit any Entry or engage in any act or omission that violates or causes Financial Institution to violate the Rules, applicable laws, regulations or regulatory requirements, including, but not limited to, regulations of the Office of Foreign Assets Control (OFAC), sanctions or executive orders. It shall further be the responsibility of the Company to obtain information regarding such OFAC enforced sanctions. (This information may be obtained directly from the OFAC Compliance Hotline at (800) 540-6322.)

5. Verification of Rules Compliance. Financial Institution reserves the right to verify the Company's compliance with this Agreement and / or the Rules in any manner it deems appropriate, including a complete audit of the Company's activities in connection with this Agreement.

6. Transmittal of Entries and Physical and Electronic Security Procedures.

a. The Company shall transmit any debit or credit Entries authorized in Attachment 4 to the Financial Institution in accordance with the Rules and this Agreement. Company hereby authorizes the Financial Institution to transmit any Entry received by Financial Institution from Company in accordance with the Rules and the terms of this Agreement and to credit or debit the amount of such Entry to the accounts specified by Company. The Company shall comply with the security procedures described in Attachment 2 to this Agreement. Company acknowledges that the security procedures are for verification of authenticity and not to detect errors in the transmission or content of the Entry. No security practice or procedure for the detection of any such error has been agreed upon between the Financial Institution and the Company. Company authorizes Financial Institution to follow any and all instructions entered and transactions initiated using applicable Security Procedures unless and until Company has notified Financial Institution, according to notification

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procedures prescribed by Financial Institution, that the Security Procedures or any Security-related Item has been stolen, compromised, or otherwise become known to persons other than Authorized Representatives and until Financial Institution has had a reasonable opportunity to act upon such notice. Company agrees that the initiation of a transaction using applicable Security Procedures constitutes sufficient authorization for Financial Institution to execute such transaction notwithstanding any particular signature requirements identified on any signature card or other documents relating to Company's deposit account maintained with Financial Institution, and Company agrees and intends that the submission of transaction orders and instructions using the Security Procedures shall be considered the same as Company's written signature in authorizing Financial Institution to execute such transaction. Company acknowledges and agrees that Company shall be bound by any and all Entries initiated through the use of such Security Procedures, whether authorized or unauthorized, and by any and all transactions and activity otherwise initiated by Authorized Representatives, to the fullest extent allowed by law. Company may not reinitiate Entries except as prescribed by the Rules.

b. The Company shall prevent and safeguard against unauthorized transmissions, disclosures and access to the following (all of which are referred to herein as "Security-related Items"): information (including but not limited to security procedures, instructions, passwords and Authorized Representative identifications), systems and equipment that interface with, connect to or allow access to the Financial Institution, its information, systems and equipment. The Company shall establish, maintain and enforce physical and logical commercially reasonable security practices, techniques and procedures with respect to access, storage and maintenance to safeguard against unauthorized transmissions and unauthorized access to Security-related Items. Such practices, techniques and procedures shall be no less than the security-related requirements set forth in this Agreement and in the Rules.
c. Without limiting the foregoing, Company warrants that no individual will be allowed to initiate transfers without proper supervision and safeguards and Company agrees to take all reasonable steps to maintain confidentiality of the security procedures and any Security-related Items and features. If Company suspects, knows, believes or has reason to believe that an unauthorized individual has transmitted or attempted to transmit one or more Entries or that the security procedures or other Security-related Items have otherwise been compromised, Company agrees to immediately notify the Financial Institution and agrees that any Entry received by Financial Institution before or within a reasonable time after such notice to the Financial Institution shall be treated as authorized by Company.
d. In the event of a breach of the Security Procedure, Company agrees to assist Financial Institution in determining the manner and source of the breach. Such assistance shall include, but shall not be limited to, providing Financial Institution or Financial Institution's agent access to Company's hard drive, storage media and devices, systems and any other equipment or device that was used in breach of the Security Procedure. Company further agrees to provide to Financial Institution any analysis of such equipment, device, or software or any report of such analysis performed by Company, Company's agents, law enforcement agencies, or any other third party. Failure of Company to assist Financial Institution shall be an admission by Company that the breach of the Security Procedure was caused by a person who obtained access to transmitting facilities of Company or who obtained information

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facilitating the breach of the Security Procedure from Company and not from a source controlled by Financial Institution.

e. Financial Institution reserves the right to modify, amend, supplement, or cancel any or all Security Procedures, and/or to cancel or replace any Security-related Item, at any time and from time to time in Financial Institution's discretion. Financial Institution will endeavor to give Company reasonable notice of any change in Security Procedures; provided that Financial Institution may make any change in Security Procedures without advance notice to Company if Financial Institution, in its judgment and discretion, believes such change to be necessary or desirable to protect the security of Financial Institution's systems and assets. Company's implementation and use of any changed Security Procedures after any change in Security Procedures shall constitute Company's agreement to the change and Company's agreement that the applicable Security Procedures, as changed, are commercially reasonable and adequate for the purposes intended.

7. Company's Representations, Warranties and Agreements. Company represents and warrants that each Entry provided to the Financial Institution complies in all respects with the Rules and this Agreement. Company acknowledges and agrees that, pursuant to the Rules, the Financial Institution makes certain warranties to the ACH Operator and other financial institutions and that such warranties are made in reliance on: (i) the representations and warranties of the Company, including but not limited to those contained in this section of this Agreement and (ii) Company's agreement to be bound by the Rules and all applicable laws and regulations, including, but not limited to, federal and state money transmission licensing, money services registration and related financial laws and regulations. The Company shall indemnify the Financial Institution against any claims, alleged claims, loss, liability or expense (including attorneys' fees and expenses) resulting directly or indirectly from, related to or arising out of: (i) any breach of the Company's warranties or this Agreement; (ii) Company's failure to exercise ordinary care in connection with its duties hereunder; (iii) any action by the Receiving Depository Financial Institution ("RDFI") upon an unauthorized or erroneous Entry initiated by the Company; (iv) any actions by a service provider or agent of the Company that results in a breach of this Agreement by the Company; (v) to the extent that it involves the Financial Institution, any litigation by an ACH Operator, an RDFI or any Receivers asserting noncompliance on the Company's part with the Rules, laws, regulations or regulatory requirements. Without limiting the foregoing, Company warrants:

a. Each Entry is authorized pursuant to the Rules and the authorization has not been revoked;
b. Each authorization is clear and readily understandable by the Receiver;
c. Copies of authorizations will be made available when requested by Financial Institution;
d. Each credit Entry is timely and accurate;
e. Each debit Entry is for a sum which, on the Settlement Date will be due and owing to the Company from the party whose account will be debited, is for a sum specified by such party or is to correct a previously transmitted erroneous credit Entry;
f. No Entry has been reinitiated in violation of the Rules;
g. The Company will comply with the terms of the Electronic Funds Transfer Act, if applicable, *or* Uniform Commercial Code Article 4A if applicable, and shall otherwise perform its obligations under this Agreement in accordance with all applicable laws and regulations;

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h. Company has used commercially reasonable procedures to verify that all information contained in an Entry, including but not limited to routing numbers, is accurate and valid;
i. This Agreement has been duly and properly authorized by Company, the party executing this Agreement is properly authorized on behalf of the Company to execute this Agreement on its behalf, and this Agreement is enforceable by Financial Institution in accordance with its terms; and
j. Company acknowledges and agrees that it is only authorized to generate Entries using the SEC Codes authorized in **Attachment 4** to this Agreement, and covenants that it will not generate any other form of Entry without the written approval of Financial Institution, which approval may be withheld by Financial Institution in its sole and absolute discretion. Company will comply with all applicable special warranties relating to such Entries as set for in the Rules.

8. Standard Entry Class ("SEC") Codes. Company agrees to originate transactions using the correct SEC Code, and to limit use of such codes to those specifically authorized by this Agreement. Company agrees to notify Financial Institution prior to generating any Entry that uses an SEC Code other than those approved in attached Attachment 4 and acknowledges that Financial Institution may require Company to execute additional addendums to this Agreement prior to permitting Company to originate Entries using other SEC Codes.

9. Prohibition of International Origination. Financial Institution does not serve in the capacity of a Gateway Operator and therefore, does not normally allow origination of International ACH ("IAT") transactions. The Parties agree that International ACH ("IAT") transactions require prior approval and execution of additional addendums to this Agreement, and that per the terms of Attachment #7 hereto, such approval has been granted.

10. Financial Institution Obligations. Financial Institution shall, in accordance with the Rules, process, transmit and settle for any Entry, provided that Financial Institution shall have no obligation to transmit an Entry if Company fails to comply with the Rules or any terms of this Agreement. Financial Institution shall rely on any and all information it receives from the Company through Financial Institution's SFTP site and any person Financial Institution, in good faith, reasonably believes to be acting on behalf of the Company, whether or not such person was specifically designated as an Authorized Representative by Company.

11. Company's Account; Payment of Entries; Reserve Account.

a. **Company's Account.** Company shall maintain a deposit account (the "Account") with the Financial Institution at all times during the term of this Agreement. Company shall at all times maintain a balance of available funds in the Account sufficient to cover Company's obligations under this Agreement. If collected balances in the Account are insufficient to cover the aggregate amount of Entries, the Financial Institution shall have no obligation to transmit such Entries. Company authorizes Financial Institution to debit its Account for any amount it owes the Financial Institution as a result of this Agreement.

b. **Payment of Debit Entries.** Any debit Entries initiated by Company will be credited to Company's Account and available when the Entries settle or when the Financial Institution receives credit, whichever occurs first.

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c. **Payment for Credit Entries and Returned Debit Entries.** Company agrees to pay for all credit Entries issued by Company, Authorized Representative(s), or credit Entries otherwise made effective against Company. Company shall make payment to Financial Institution on the date as determined by Financial Institution in its sole discretion ("Payment Date"). Company shall pay Financial Institution for the amount of each debit Entry returned by a Receiving Depository Financial Institution ("RDFI") or debit Entry dishonored by Financial Institution.

d. **Reserve Account.** The Company will further maintain a reserve account as required by Financial Institution (the "Reserve Account"). The Reserve Account will be used by Financial Institution, at its sole discretion, in the event funds in the Account are insufficient to cover daily activity. The initial minimum required balance for the Reserve Account is set forth in Attachment 4 and may be adjusted by Financial Institution from time to time in its sole discretion upon notice to Company ("Required Balance"). Company shall be required to maintain the Required Balance in the Reserve Account at all times during the term of this Agreement. In the event there are not sufficient available funds in the Account to cover Company's obligations under this Agreement, Company agrees that the Financial Institution may debit the Reserve Account in payment of such obligations and Company will replenish the Reserve Account to meet the minimum Required Balance within twenty-four (24) hours. In the event the Required Balance is not replenished within twenty-four (24) hours, Financial Institution shall have the unilateral right to terminate all ACH activity without prior notice.

12. Security Interest. To secure the payment and performance of Company's obligations set forth herein, Company grants to Financial Institution a security interest in and pledges and assigns to Financial Institution all of Company's right, title, and interest in the following described property, whether now owned or hereafter existing or acquired and wherever located: (a) all monies, instruments, savings, checking and other accounts of Company (excluding IRA, Keogh, trust accounts and other accounts subject to tax penalties if so assigned) that are now or in the future in Financial Institution's custody or control; (b) any other collateral described in any security instrument securing the obligations of Company to Financial Institution under this Agreement or any other obligation of Company to Financial Institution; and (c) all proceeds and products of the property as well as any replacements, accessions, substitutions, and additions to any of the above.

13. Prohibited Transactions. Company agrees not to use or attempt to use the Services (a) to engage in any illegal purpose or activity or to violate any applicable law, rule or regulation, (b) to breach any contract or agreement by which Company is bound, (c) to engage in any internet or online gambling transaction, whether or not gambling is legal in any applicable jurisdiction, or (d) to engage in any transaction or activity that is not specifically authorized and permitted by this Agreement. Company acknowledges and agrees that Financial Institution has no obligation to monitor Company's use of the Services for transactions and activity that is impermissible or prohibited under the terms of this Agreement; provided, however, that Financial Institution reserves the right to decline to execute any transaction or activity that Financial Institution believes violates the terms of this Agreement**.**

14. Provisional Credit Notice. In the case of a credit Entry, credit given by the RDFI for the Entry is provisional until the RDFI has received final settlement through a Federal Reserve Bank or has otherwise received payment. If the RDFI does not receive such payment for the Entry, the RDFI is entitled to a refund from the Receiver in the amount of the credit to the Receiver's

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account, and Company will not be considered to have paid the amount of the credit Entry to the Receiver.

15. Notifications of Change (NOC). Financial Institution agrees to forward notifications of change (NOCs) to Company within 2 business days of receiving such NOCs. Company agrees to respond to NOCs by investigating incorrect data and making corrections within six (6) business days of receipt or prior to initiating another Entry to the Receiver's account, whichever is later, or initiate a refused NOC.

16. Refused NOC. If Company is unable to handle an NOC, it agrees to notify Financial Institution so that a refused NOC can be initiated within fifteen (15) days of the receipt of the NOC.

17. Cancellation or Amendment of an Entry. Company shall have no right to cancel or amend any Entry after its receipt by Financial Institution. However, Financial Institution shall use reasonable efforts to act on a request by the Company to cancel an Entry/File before transmitting it to the ACH Operator or crediting or debiting an On-Us Entry. Any such request shall be in writing and comply with this Agreement, including the security procedures described on Attachment 2 to this Agreement. The Financial Institution shall have no liability if it fails to effect the cancellation. Company shall reimburse, indemnify and hold harmless Financial Institution for any expenses (including attorneys' fees), losses or damages the Financial Institution incurs in effecting or attempting to effect Company's request for the cancellation of an Entry.

18. Rejection of Entries. Financial Institution may reject any Entry, including an On-Us Entry, that does not comply with the requirements of the Attachments of this Agreement and may reject any Entry if the Company is not otherwise in compliance with the terms of this Agreement or the Rules. Financial Institution shall notify the Company in accordance with Attachment 1 of such rejection no later than the business day such Entry would otherwise have been transmitted by the Financial Institution to the ACH Operator or, in the case of an On-Us Entry, its Effective Entry Date. Notices of rejection shall be effective when given. Financial Institution shall have no liability to Company by reason of the rejection of any such Entry or the fact that such notice is not given at an earlier time than that provided for herein. Company agrees to correct the Entry to comply with applicable terms prior to resubmission.

19. Returned Entries. The Financial Institution shall notify the Company in accordance with Attachment 1 of the receipt of a returned Entry from the ACH Operator no later than two (2) business days of receiving such returned Entry. Financial Institution shall have no obligation to re-transmit a returned Entry if Financial Institution complied with the terms of this Agreement with respect to the original Entry. Company agrees to be knowledgeable about specific return codes, and not reinitiate any returns except as noted below. Company also agrees to abide by all operating rules with respect to returned Entries. If an Entry is returned, then it is the Company's responsibility to collect any funds that are owed. In the event an Entry is returned for correction, Company agrees to make said corrections before transmitting another Entry to the Receiver. Company agrees not to originate a transaction where authorization has been revoked. In the event a returned Entry or NOC sent to the Company is in error, the Company will notify the Financial Institution within one business day of notice receipt.

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20. Re-initiation of Returned Entries. Company agrees it shall not reinitiate a returned Entry unless (i) the Entry has been returned for insufficient or uncollected funds; (ii) the Entry has been returned for stopped payment and reinitiation has been authorized by the Receiver, or (iii) the Financial Institution has taken corrective action to remedy the reason for the return. Company also agrees that Entries returned for insufficient or uncollected funds will only be reinitiated twice.

21. Entries Returned as Unauthorized. In the event that an Entry is returned as unauthorized or authorization revoked, the Company will contact the necessary parties and resolve any dispute. During this process the Company may ask the Financial Institution to request from the RDFI a copy of the "Written Statement of Unauthorized Debit." Financial Institution will make its best effort to obtain the form and will deliver it to the Company when received. Company agrees not to re-originate any transaction returned as unauthorized or as authorization revoked unless the customer reauthorized the Entry.

22. Unauthorized Rate in Excess of .5%. In the event the rate of unauthorized transactions exceeds .5% based on the calculations noted in the Rules, Company will share the data requested by the Financial Institution based on the Rules and will immediately begin the process of bringing the rate below .5.

23. Administrative Returns. In the event the rate of administrative returns exceeds 3% for any two calendar months or 60 day period, Company will share any data requested by Financial Institution based on the Rules. If it is determined that remediation is necessary the Company will develop a plan to promptly reduce that figure to under 3%.

24. Overall Return Rate. In the event that the overall rate of returns is greater than 15% for any two calendar months or 60 day period, Company will share any data requested by Financial Institution based on the Rules. If it is determined that remediation is necessary the Company will develop a plan to promptly reduce that figure to under 15%.

25. Dishonored Returns. Company acknowledges that it may have the Financial Institution dishonor a return for two reasons: (i) the Entry has been returned later than the deadline established for accepting returns and either the Company or Financial Institution has suffered a loss, or (ii) the return Entry contains incorrect information. Within twenty-four (24) hours following the Settlement Date of a return Entry, Company must timely notify the Financial Institution of its desire to dishonor a return so it can be sent within five business days of the Settlement Date of the return Entry. Both Financial Institution and Company acknowledge that failure to utilize the dishonored return process does not preclude its right to seek recovery against an RDFI outside of the ACH return process for a late return.

26. Reversals. If the Company has mistakenly initiated a duplicate Entry or File or a File contains an Entry or Entries with the types of erroneous data specified in the Rules relating to reversing files, the Company may reverse the File or Entry pursuant to the Rules. If the Company reverses an Entry or File, Company shall indemnify the Financial Institution against any claim, demand, loss, liability or expense resulting directly or indirectly from such reversal.

27. Error Detection. Financial Institution has no obligation to discover and shall not be liable to Company for errors made by Company, including but not limited to errors made in identifying the Receiver, or an Intermediary or RDFI or for errors in the amount of an Entry or

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for errors in Settlement Dates. Financial Institution shall likewise have no duty to discover and shall not be liable for duplicate Entries issued by Company. Notwithstanding the foregoing, if the Company discovers that any Entry it has initiated was in error, it shall notify the Financial Institution of such error. If such notice is received no later than four (4) hours prior to the ACH receiving deadline, the Financial Institution will utilize reasonable efforts to initiate an adjusting Entry or stop payment of any "On-Us" credit Entry within the time limits provided by the Rules. In the event that Company makes an error or issues a duplicate Entry, Company shall indemnify, defend all claims, and hold Financial Institution harmless from any loss, damages, or expenses, including but not limited to attorney's fees, incurred by Financial Institution as result of the error or issuance of duplicate Entries.

28. Periodic Statement. The periodic statement issued byFinancial Institution for the Company's Account will reflect Entries credited and debited to Company's Account. Company agrees to notify Financial Institution within a reasonable time, not to exceed thirty (30) days, after Company receives a periodic statement of any discrepancy between Company's records and the information in the periodic statement. If Company fails to notify Financial Institution of any such discrepancy within thirty (30) days after receipt of such periodic statement, Company shall be precluded from asserting any claim against Financial Institution arising from such discrepancy.

29. Fees. The Company agrees to pay the Financial Institution for services provided under this Agreement in accordance with the schedule of charges attached to this Agreement as Attachment 3. The Financial Institution may change its fees from time to time upon notice to the Company.

30. Liability. In the performance of the services required by this Agreement, Financial Institution shall be entitled to rely solely on the information, representations and warranties provided by Company pursuant to this Agreement and shall not be responsible for the accuracy or completeness of such information. Except as otherwise specifically provided by law, Financial Institution shall be responsible only for performing the services expressly provided for in this Agreement, and shall be liable only in the event of loss due to its gross negligence or willful misconduct in performing those services. In no event shall the Financial Institution have any liability for any lost profits, exemplary, incidental, consequential, special, punitive or indirect loss or damage which the Company may incur or suffer in connection with this Agreement whether or not the possibility of such losses or damages was known or contemplated by Financial Institution and regardless of the legal or equitable theory of liability Company may assert. Without limiting the foregoing, Financial Institution shall not be liable for and shall be excused from failing to act or delay in acting if such failure or delay is caused by legal constraint, interruption of transmission or communication facilities, equipment failure, war, acts of terror, emergency conditions or other conditions beyond the Financial Institution's control. To the extent allowed by law, the Financial Institution shall not be liable for and shall be excused from failing to transmit or any delay in transmitting an Entry (i) if such transmittal would result in the Financial Institution's having exceeded any limitation upon its intra-day net funds position established pursuant to present or future Federal Reserve guidelines; (ii) if, for any reason, the ACH Operator fails or declines to process an Entry; (iii) if, in the Financial Institution's sole discretion, processing an Entry would violate or contribute to the violation of any present or future risk control program of the Federal Reserve or any Rule, law, regulation or regulatory requirement; or (iv) if processing an Entry, in Financial Institution's sole discretion, would cause it to engage in an unsafe and unsound practice.

31. Rules Enforcement. In the event that a Report of Possible Rules Violation is filed on Company, Company will take appropriate steps to correct the problem within the time frames suggested by Financial Institution. In the event that a fine is levied against Financial Institution for a violation of the Rules, Company agrees to make Financial Institution whole for the value of the fine.

32. Record and Data Retention. Company agrees to maintain acceptable quality, permanent and electronically accessible records of all transactions in accordance with the Rules and any other published state and federal requirements, which records shall be made available to Financial Institution or to those regulatory agencies having jurisdiction over Financial Institution upon request. Company shall retain data on file adequate to permit the remaking of Entries for five (5) Business Days following the date of their transmittal by Financial Institution as provided herein, and shall provide such data to Financial Institution upon its request.

33. Recording and Use of Communications. Company agrees that all telephone conversations or data transmissions between Company and Financial Institution, or their respective agents, made in connection with this Agreement may be electronically recorded and retained by Financial Institution by use of any reasonable means. Financial Institution shall not be obligated to make such recordings.

34. Authorizations. Company shall obtain an authorization ("Authorization Agreement") as required by the Rules from the person or entity whose account will be debited or credited as the result of a debit or credit Entry initiated by Company and Company shall retain the Authorization Agreement in original form while it is in effect and the original or a copy of each authorization for two (2) years after termination or revocation of such authorization as stated in the Rules. It is the sole responsibility of the Company to verify that the individual signing the Authorization Agreement is, in fact, entitled to use of the specified account. The Company's obligation to pay the amount of the Entry to Financial Institution is not excused if the party that signed the Authorization Agreement is not entitled to use of the specified account. In accordance with the Rules, Company must provide a copy of such Authorization Agreement upon request from Financial Institution or any RDFI in response to an alleged unauthorized transaction or error . Such Authorization Agreement, at a minimum, shall include:

- Date of authorization
- Receiver Name
- Receiver Account Number and Type of Account
- A description of the Entry type (e.g. Direct Billing)
- Posting date and Posting Frequency, if applicable
- Expiration date or information on how the Receiver can revoke their authorization, such as a mailing address or telephone number for the Company.

35. Cooperation in Loss Recovery Efforts. In the event of any damages for which Financial Institution or Company may be liable to each other or to a third party pursuant to the services provided under this Agreement, Financial Institution and Company will undertake reasonable efforts to cooperate with each other, as permitted by applicable law, in performing loss recovery efforts and in connection with any actions that the relevant party may be obligated to defend or elects to pursue against a third party.

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36. Inconsistency of Name and Account Number. Company acknowledges and agrees that, if an Entry describes the Receiver inconsistently by name and account number, payment of the Entry may be made on the basis of the account number even if it identifies a person different from the named Receiver, and Company's obligation to pay the amount of the Entry to Financial Institution is not excused in such circumstances.

37. ACH Rule Compliance Review. Company agrees to review its compliance with the Rules on a periodic basis. Financial Institution has a right to request the details of the review. Financial Institution also has the right to audit Company's compliance with the Rules and this Agreement.

38. Term, Termination and Suspension. This Agreement is effective upon execution by the parties and shall extend for one (1) year. Thereafter, this Agreement shall automatically renew for consecutive periods of one (1) year each, unless sooner terminated in accordance with this Section. Financial Institution may terminate this Agreement upon sixty (60) days prior written notice to Company. Financial Institution may require Company to pre-fund the Reserve Account for five (5) days' worth of volume following Financial Institution's notice and continuing throughout the remainder of the term of this Agreement. Either party may terminate this Agreement upon a material breach by the other party, but only if the failure continues thirty (30) days after the non-performing party receives written notice from the other party specifying the breach. Financial Institution may terminate this Agreement immediately upon Company's failure to pay any amount then due hereunder.

Notwithstanding the foregoing, this Agreement may be terminated immediately by Financial Institution upon notice to Company if: (i) Company ceases to conduct its business in the ordinary sense, (ii) Company has any substantial part of its property become subject to any levy, seizure, assignment or application for sale for, or by, any creditor or government agency, (iii) Company is a party to an acquisition, (iv) in the reasonable judgment of Financial Institution, Company experiences an adverse change in its financial condition or business which impairs the ability of such party to perform its obligations under this Agreement, (v) Company makes any warranty or representation which proves to be false or misleading, or (vi) in Financial Institution's sole discretion, Financial Institution determines that Company has materially breached this Agreement, NACHA Rules, applicable state or federal laws, abused the ACH Origination Service, or Financial Institution believes that it will suffer a loss or other damage, including reputational damage, if the Agreement is not terminated.

Written notices may be mailed, faxed, or hand-delivered to the other party. If this Agreement is terminated by Financial Institution, the processing of Entries will cease on the effective date of termination. If this Agreement is terminated by the Company, the processing of Entries will cease when Financial Institution receives and has had an opportunity to respond to the written notice.

Any termination of this Agreement shall not affect any of Financial Institution's rights and Company's obligations with respect to Entries initiated by Company prior to the effective time of such termination, or the payment of obligations of Company with respect to services performed by Financial Institution prior to the effective time of such termination, or any other obligations that shall survive termination. The provisions of this Agreement that are necessary to give effect to the purposes of this Agreement shall survive its termination.

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Financial Institution's election to terminate this Agreement is in addition to any and all other remedies that may be available to Financial Institution and will not affect any obligations Company may have to Financial Institution. Any reinstatement of the ACH Origination Service under this Agreement will be at Financial Institution's sole discretion and must be agreed upon in writing by an authorized representative of Financial Institution.

Upon termination of this Agreement, any property or rights of a party in the possession of the other party, tangible or intangible, shall be returned to owner thereof within thirty (30) days after the later to occur of (i) termination of the Agreement or (ii) the last date that such party receives any such property or rights.

Upon termination of this Agreement, (i) Company will promptly pay to Financial Institution all sums due or to become due under this Agreement, (ii) Company shall have no further right to make use of the ACH Origination Service or any system or software which may have been provided in connection with any ACH Origination Service.

39. Audit and Financial Information. Financial Institution may from time to time request information from Company in order to evaluate a continuation of the ACH Origination Service to be provided by Financial Institution hereunder and/or adjustment of any limits set by this Agreement. Company agrees to provide the requested financial information immediately upon request by Financial Institution, in the form required by Financial Institution. Company authorizes Financial Institution to investigate or reinvestigate at any time any information provided by Company in connection with this Agreement or the ACH Origination Service and to request reports from credit bureaus and reporting agencies for such purpose. Upon request by Financial Institution, Company hereby authorizes Financial Institution to enter Company's business premises for the purpose of ensuring that Company is in compliance with this Agreement and Company specifically authorizes Financial Institution to perform an audit of Company's operational controls, risk management practices, staffing and the need for training and ongoing support, and information technology infrastructure. Company hereby acknowledges and agrees that Financial Institution shall have the right to mandate specific internal controls at Company's location(s) and Company shall comply with any such mandate. In addition, Company hereby agrees to allow Financial Institution to review available reports of independent audits performed at the Company location related to information technology, the ACH Origination Service and any associated operational processes. Company agrees that if requested by Financial Institution, Company will complete a self-assessment of Company's operations, management, staff, systems, internal controls, training and risk management practices that would otherwise be reviewed by Financial Institution in an audit of Company. If Company refuses to provide the requested financial information, or if Financial Institution concludes, in its sole discretion, that the risk of Company is unacceptable, or if Company refuses to give Financial Institution access to Company's premises, Financial Institution may terminate the ACH Origination Service immediately according to the provisions hereof.

40. Third Party Service Providers. Company may be using special equipment, services or software provided by a third party to assist it in processing Files hereunder ("Service Provider"). Company agrees not to use a Service Provider to transmit files to Financial Institution without Financial Institution's prior written approval and without first entering into a written agreement with such Service Provider. If Company uses Service Provider to transmit Files to Financial Institution Company (a) agrees that Service Provider is acting as Company's agent in the delivery of Files to Financial Institution, and (b) agrees to assume full responsibility and liability for any

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failure of Service Provider to comply with the laws of the United States, the Rules and this Agreement. Financial Institution will not be liable for any losses or additional costs incurred by Company as a result of any error by Service Provider or a malfunction of equipment provided by Service Provider. Company is solely responsible for maintaining compliance with the requirements of Service Provider, including obtaining any software updates. Financial Institution's sole responsibility shall be to transmit Financial Institution approved transactions to the ACH Operator and Financial Institution shall not have any responsibility for any File handled by Service Provider until that point in time when Financial Institution accepts and approves a File from such Service Provider for processing. If Financial Institution authorizes Company to use a Service Provider, the terms and conditions governing the relationship between Company and the Service Provider shall be governed by a separate agreement between Company and Service Provider. All of Company's obligations and responsibilities under this Agreement will apply to the Service Provider, and Company's separate agreement with the Service Provider must so provide. At Financial Institution's request, Company will provide to Financial Institution a true and exact copy of such agreement. Company shall designate the Service Provider as an Authorized Representative and the Service Provider must also enter into a Service Provider Agreement with Financial Institution before the Service Provider sends Files to Financial Institution. Notwithstanding the foregoing, Company hereby authorizes Financial Institution to accept any File submitted by a Service Provider even if the Service Provider has not been designated as an Authorized Representative or if the Third Party Service Provider has not executed the Service Provider Agreement. Company hereby indemnifies and holds Financial Institution harmless for any losses, damages, fines, assessments, costs and expenses incurred or suffered by Financial Institution or any other person as a result of or arising from Company's use of Service Provider, including fines or assessments incurred under or pursuant to the Rules and attorneys' fees.

41. Entire Agreement. This Agreement (including the Attachments, all of which are incorporated herein by reference) is the complete and exclusive statement of the agreement between the Financial Institution and the Company with respect to the subject matter hereof and supersedes any prior agreement(s) between the Financial Institution and the Company with respect to the ACH Origination Service. In the event of any inconsistency between the terms of this Agreement, or the Attachments or any other agreements governing the Account, the terms of this Agreement shall govern with respect to the ACH Origination Service. In the event performance of the services provided herein in accordance with the terms of this Agreement would result in a violation of any present or future statute, regulation or government policy to which the Financial Institution is subject, and which governs or affects the transactions contemplated by this Agreement, then this Agreement shall be deemed amended to the extent necessary to comply with such statute, regulation or policy, and the Financial Institution shall incur no liability to the Company as a result of such violation or amendment. No course of dealing between the Financial Institution and the Company will constitute a modification of this Agreement or constitute an agreement between the Financial Institution and the Company regardless of whatever practices and procedures the Financial Institution and the Company may use.

42. <u>Arbitration and Waiver of Jury Trial</u>. Company and Financial Institution agree that the transactions contemplated in this Agreement involve "commerce" under the Federal Arbitration Act ("**FAA**"). **EVERY CONTROVERSY OR CLAIM BETWEEN COMPANY AND ANY INDEMNIFIED PARTY ARISING OUT OF, OR IS IN ANY WAY RELATED TO OR RESULTING FROM, THIS AGREEMENT, THE REMOTE DEPOSIT SERVICE**

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OR ANY OTHER SERVICES PROVIDED BY BANK, WHETHER BASED IN CONTRACT, TORT OR ANY OTHER LEGAL THEORY, INCLUDING CLAIMS OF FRAUD, SUPPRESSION, MISREPRESENTATION AND FRAUD IN THE INDUCEMENT, WILL BE RESOLVED BY BINDING ARBITRATION UNDER THE FAA. The arbitration will be administered by the American Arbitration Association ("**AAA**") under its Commercial Arbitration Rules (the "**Arbitration Rules**"). **IF A CLAIM IS SUBMITTED TO ARBITRATION, (A) COMPANY WILL NOT HAVE THE RIGHT TO GO TO COURT OR TO HAVE A JURY TRIAL; (B) COMPANY WILL NOT HAVE THE RIGHT TO ENGAGE IN PRE-ARBITRATION DISCOVERY EXCEPT AS PROVIDED IN THE ARBITRATION RULES; (C) COMPANY WILL NOT HAVE THE RIGHT TO HAVE ANY CLAIM ARBITRATED AS A CLASS ACTION UNDER THE ARBITRATION RULES OR UNDER ANY OTHER RULES, WHETHER OF CIVIL PROCEDURE OR OTHERWISE; AND (D) THE ARBITRATOR'S DECISION WILL BE FINAL AND BINDING WITH LIMITED RIGHTS TO APPEAL. THIS ARBITRATION PROVISION IS SUPPLEMENTAL TO, AND NOT IN LIEU OF, ANY OTHER ALTERNATIVE DISPUTE RESOLUTION PROVISION, AND, IN THE EVENT OF A CONFLICT BETWEEN THIS PROVISION AND ANY OTHER SUCH ALTERNATIVE DISPUTE RESOLUTION PROVISION, THE TERMS OF THIS PROVISION SHALL CONTROL.** This agreement to arbitrate disputes will survive the closing of Company's Accounts and the termination this Agreement.

43. **Authorized Persons**. It is the responsibility of the Company to notify Financial Institution in writing of any changes to those individuals designated as the Authorized Representatives for the Company specified in Attachment 5. To add or delete Authorized Representatives specified in Attachment 5, the Company shall provide Financial Institution with a revised Attachment 5 signed by an authorized signer of the Company. Until Financial Institution receives such revised Attachment 5 and has had a reasonable opportunity to act on it, Financial Institution shall continue to use previously designated Authorized Representatives and rely on all information provided by such Authorized Representatives.

By signing below, Company acknowledges that all employees designated by Company to use this service have received a copy of the NACHA Rules and the applicable portions of this Agreement. Customer also acknowledges that they have read and understand these Rules and their obligations in connection with this Agreement.

44. **Miscellaneous.** Financial Institution may amend the terms of this Agreement from time to time by notice to Company. Financial Institution shall have no obligation to transmit Entries if Company is in default on any of its obligations under this Agreement, including the obligation to pay Financial Institution for each Entry. Financial Institution shall be entitled to rely on any written notice believed by it in good faith to be signed by one of the Authorized Representatives whose names are set forth on Attachment 5 to this Agreement. This Agreement shall be governed by and construed in accordance with the law of the state of New York. Company may not assign this Agreement or any or any of the rights or duties hereunder to any person without Financial Institution's prior written consent. Financial Institution may waive enforcement of any provision of this Agreement. Any such waiver shall not affect Financial Institution's rights with respect to any other transaction or modify the terms of this Agreement. In the event that any provision of this Agreement shall be determined to be invalid, illegal or unenforceable to any extent, the remainder of this Agreement shall not be impaired or otherwise affected and shall continue to be valid and enforceable to the fullest extent permitted by law. This Agreement shall be binding

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upon and inure to the benefit of the parties hereto and their respective legal representatives, successors and assigns. This Agreement is not for the benefit of any other person, and no other person shall have any right against Financial Institution or Company hereunder. This Agreement (including the Schedules attached hereto) together with the Account Agreement, is the complete and exclusive statement of the agreement between Financial Institution and Company with respect to the subject matter hereof and supersedes any prior agreement(s) between Financial Institution and Company with respect to such subject matter. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same Agreement. This Agreement may be executed by a party by electronic or facsimile transmission of the party's signature, and said electronic or facsimile copy shall have the same force and effect as any originally-signed document delivered in person.

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This ACH Origination Agreement is accepted and entered in to by the parties signed below:

TILIA INC. (Company)

_____ _____
Signature* Date

_____
Printed Name

_____
Title

*Must be signed by individual designated by corporate resolution as authorized signer for Company

[redacted] **(Financial Institution)**

_____ _____
Signature Date

_____
Printed Name

_____
Title

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Attachment #1

[redacted] will provide Company access to its SFTP site for ACH file delivery and pick up. Transmission specifications will be addressed during the testing period.

All ACH files must be submitted in standard NACHA Format in order for [redacted] to be able to process Company's ACH file. The file format of all ACH files must comply with the file formats detailed in the Rules.

Cut-Off Times for ACH Files sent via Financial Institution's SFTP site: 3:30 P.M. EST

If an ACH file arrives from Company or Company's processor on a non-business day or after the Cut-Off Times on a business day, the ACH file will be transmitted on the next business day.

The Effective Entry Date is a date specified by Company on which it intends an Entry to be posted and settled. The Effective Entry Date must be a future date and must not be a Saturday, Sunday or holiday observed by the Federal Reserve Bank. The Effective Entry Date is usually the same date as the settlement of funds.

Saturdays, Sundays and Financial Institution holidays are not business days, and therefore, no ACH files will be processed. Please consult a US calendar for listing of all Financial Institution holidays for the upcoming year. Any files received during a Financial Institution holiday, will be processed the next business day. A holiday that falls on a Sunday will be observed on the following Monday.

Company will be informed of Return Items, File Rejects, Notifications of Change and other matters by the agreed upon communication method. [redacted] will use the information provided on Attachment #5 for the purposes of discussing ACH Matters with Authorized Representatives of Company.

The Contact information for ACH at [redacted] is:

Fatima Mateen/ Marlon Cheng

Phone: (646) 929-8136 or 646-929-8104
Email: MS-OPS@cfsb.com
(Never send your account number or other confidential information via e-mail)

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Attachment #2

The Uniform Commercial Code Article 4A, (UCC 4A) demands that for corporate credits there be a "commercially reasonable" security procedure in place to guard against loss. At [redacted] (CFSB), we have established security procedures to ensure the integrity of the information that is sent to [redacted] These security procedures may vary based upon the method of ACH file delivery. A brief description of these security procedures is included below; however, specific security procedures will be determined on an individual customer basis and will be discussed in detail with Company at the time of implementation.

Security Procedures:

- *Company is solely responsible for establishing and maintaining procedures to safeguard against unauthorized transactions. Company warrants that no individual will be allowed to initiate or authorize ACH transfers or instructions in the absence of proper supervision and safeguards; which may include but not be limited to dual controls and segregation of duties. Company acknowledges the critical importance of maintaining the strict confidentiality of the Security Procedures and its Security-related Items and agrees to protect the confidentiality of and safeguard all Security Procedures, Security-related Items and related information. Company shall be solely responsible for the safekeeping of Security Procedures and Security-related Items and assumes all risk of accidental disclosure or inadvertent use of such Security Procedures and Security-related Items by any party whatsoever, whether such disclosure or use is on account of Company's negligence or deliberate acts or otherwise. Financial Institution shall not be liable for any loss or damage resulting from fraudulent, unauthorized or otherwise improper use of any Security Procedures or Security-related Items Devices. If Company believes or suspects that any such information has been accessed by an unauthorized individual, Company will verbally notify Financial Institution immediately, followed by written confirmation. The occurrence of such notification will not affect any transfers made in good faith by Financial Institution prior to the Financial Institution having a reasonable period of time to act upon such notification.*
- *Financial Institution strongly recommends that a "dual control" process be used by Company for ACH transfer requests through the SFTP site whereby after one Authorized Representative submits a request for an ACH transfer through the SFTP site, a second Authorized Representative must approve and verify such transfer. If Company elects not to employ a dual control process, Company hereby represents that it has been advised that dual control is the recommended method for ACH transfers and Company expressly accepts all liability for and agrees to indemnify Bank from and against any and all resulting claims, demands, loss, liability, or expense resulting directly or indirectly from any losses that should arise as a result of Company's failure to employ such processes.*
- *Company is solely responsible for providing for and maintaining the physical, electronic, procedural, administrative, and technical security of data and systems in Company's possession or under Company's control. Company will be solely responsible for any and all losses and damages arising from any unauthorized transmission of Files or Entries through the use of the Company's computer systems, the systems of its Authorized Representatives or through the use of Company Security-related Items. Financial Institution is not responsible for any computer viruses (including, without limitation, programs commonly referred to as "malware," "keystroke loggers," and/or "spyware"), problems or malfunctions resulting from any computer viruses, or any related problems that may be associated with the use of an*

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online system or any ACH Origination services. Any material downloaded or otherwise obtained is obtained at Company's own discretion and risk, and Financial Institution is not responsible for any damage to Company's computer or operating systems or for loss of data that results from the download of any such material, whether due to any computer virus or otherwise. Company is solely responsible for maintaining and applying anti-virus software, security patches, firewalls, and other security measures with respect to Company's operating systems, and for protecting, securing, and backing up any data and information stored in or on Company's operating systems. Financial Institution is not responsible for any errors or failures resulting from defects in or malfunctions of any software installed on Company's operating systems or accessed through an Internet connection.

- *At a minimum, Company shall, with respect to information transmitted or exchanged between Company and Financial Institution through the SFTP site, prior to the entry and transmission of ACH Entries (I) encrypt the information using a commercially reasonable security technology that, at a minimum, is equivalent to 128-bit encryption technology or (II) transmit or receive the information via a secure session that provides a level of security that, at a minimum, is equivalent to 128-bit RC4 encryption technology. Company shall implement advancements to such encryption technology as they become available.*
- *Company acknowledges and agrees that it is Company's responsibility to protect itself and to be vigilant against e-mail fraud and other internet frauds and schemes (including, without limitation, fraud commonly referred to as "phishing" and "pharming"). Company agrees to educate Authorized Representative(s), agents, and employees as to the risks of such fraud and to train such persons to avoid such risks. Company acknowledges that Financial Institution will never contact Company by e-mail in order to ask for or to verify Account numbers, Security-related Items, or any sensitive or confidential information. In the event Company receives an e-mail or other electronic communication that Company believes, or has reason to believe, is fraudulent, Company agrees that neither Company nor its Authorized Representative(s), agents, and employees shall respond to the e-mail, provide any information to the e-mail sender, click on any links in the e-mail, or otherwise comply with any instructions in the e-mail. Company agrees that Financial Institution is not responsible for any losses, injuries, or harm incurred by Company as a result of any electronic, e-mail, or Internet fraud.*

If an Entry received by [redacted] purports to have been transmitted or authorized by Company, it will be deemed effective at Company's request. [redacted] may rely on any and all instructions uploaded to Financial Institution's SFTP site as being authorized by Company, and Company shall be obligated to pay [redacted] the amount of such Entry as provided herein even though the Entry was not authorized by Company, provided [redacted] acted in compliance with any security procedures agreed upon in writing by the parties with respect to such Entry.

Call Back Procedures

- Transactions originated and delivered via the SFTP site: Since these transactions and limits are pre-established by Company and require established employee passwords, no call back will be performed. *Financial Institution will contact an Authorized Representative of the Company only if additional information or verification is needed.*

A. Company agrees that the Security Procedures set forth in this Attachment are commercially reasonable.

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B. If Company uses any method other than the Security Procedures set forth in this Attachment to communicate, deliver, or transmit a File or Entry to Bank, by doing so Company rejects the Security Procedure set forth herein, chooses an alternative security procedure, agrees that such alternative security procedure may not be found to be commercially reasonable, and agrees to be bound by any Entry, whether or not authorized, that was issued in Company's name and accepted by Bank using the alternative security procedure selected by Company.

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Attachment #3

Service Fees

Company shall pay Financial Institution the following fees:

Transaction Fee	$0.25 per Entry
ACH Returns	$0.50 per return
Incoming Wires	$25.00 per wire
Outgoing Wire	$25.00 per wire
Tailored Development and Reporting	CFSB can develop special reports to meet specific Company needs. Cost to develop and maintain special reports quoted based on program needs.

Monthly Minimum Fees.

The monthly minimums ("Monthly Minimum Fee") payable by Company to the Bank shall be as set forth below.

CFSB shall be entitled to the sum of all the Service Fees or the Monthly Minimum Fees, whichever is higher.

Month of Term	Monthly Minimum
Months 0-1	$5000.00 per month
Months 2+	$10,000.00 per month

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Attachment #4

Exposure Limits Reserve Account Minimum Balance Requirement

Credit Origination

Maximum File Value	$2,000,000.00
Maximum Entry Value	$50,000.00
Maximum Frequency	Daily
Approved SEC Code	PPD and WEB daily

Debit Origination

Maximum File Value	$0.00 (The parties agree that no debits will be initiated under this agreement)
Maximum Entry Value	$0.00 (The parties agree that no debits will be initiated under this agreement)
Approved SEC Codes	PPD, WEB and CCD daily

Aggregate Limit

The total dollar amount of ACH Entries (credits only) transmitted by Company to Financial Institution shall not exceed $2,000,000.00 on any one day.

Reserve Account Minimum Balance Requirement

The initial Reserve Account minimum required balance requirement shall be $10,000.00. The Reserve Account will start at the amount listed above and [redacted] will change this amount in accordance with Section 11 of the Agreement.

_____
AUTHORIZED SIGNATURE*

_____
TITLE

Date _____

*Must be signed by individual designated by corporate resolution as authorized signer for Company

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Attachment #5

Company Information

Name:	
Physical Address:	
City, St., Zip:	
Primary Account Number:	
Other Account Numbers:	
Federal Tax ID Number:	

Authorized Representatives: If we need to call back your Company to verify origination requests or to notify you if an Entry is rejected or returned or if an NOC is received Financial Institution:

Primary Contact Name:	
Primary Contact Phone:	
Primary Contact eMail:	
Alternate Contact Name:	
Alternate Contact Phone:	
Alternate Contact eMail:	

By signing below, I certify that the above information is correct, and that the Authorized Representatives listed above have full authority to make decisions regarding ACH Files.

_____ Date:
Signature of Authorized Representative

By:

Accepted By*: _____

_____
Printed Name, Title

*Must be signed by individual designated by corporate resolution as authorized signer for Company

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Attachment #6
Transaction Limits

Company shall not use the Account or Bank services to facilitate payments that would exceed the following amounts:

Limit per Transaction (consumer):	$[TBD]
Annual Aggregate Transaction Limit per Payee (consumer):	$[TBD]

Attachment #7

ADDENDUM to Address Section 9 Approval of IATs

This Addendum to this Agreement is made by and between the Company and the Financial Institution of even date hereof with particular regard to Section 9 in connection with International Origination. The Parties hereby acknowledge and agree that i) the Company has requested and Financial Institution approves of Company's origination of International ACH ("IAT") transactions per the terms of this Agreement; ii) by the terms of this Attachment #6 the Parties have satisfied the necessary consent provisions required to enable IATs hereunder; and iii) the Financial Institution by virtue of i) and ii) above is not serving in the capacity of a Gateway Operator.

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